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JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Murder Reference No.104 of 2022
(The State *versus* Qaiser)

Crl. Appeal No.32449-J of 2022
(Qaiser *versus* The State)

JUDGMENT

Date of hearing: **24.09.2025.**

Appellant by: **Mr. Abid Hussain, Advocate (Defence Counsel).**

State by: **Mr. Muhammad Naveed Umar Bhatti, Deputy Prosecutor General.**

Complainant by: **M/s Hafiz Naimat Ullah and Ilyas Ch., Advocates.**

AALIA NEELUM, C.J:- The appellant-Qaiser, son of Iqbal, Caste Darzi, resident of village Chak Sooraj, Tehsil Zafarwal, District Narowal, has assailed his conviction and sentence recorded by the learned Additional Sessions Judge, Narowal vide judgment dated 09.04.2022, in case F.I.R No.39/2018 dated 12.03.2018, offences under Sections 302, 376, 201, 404, 147, 149 P.P.C, registered at the police station, Lessar Kalan, District Narowal, whereby the trial court convicted the appellant-Qaiser as under:-

- The appellant was convicted **under Section 201 PPC** and was sentenced to undergo **03 years' R.I. along with** a fine of Rs.10,000/-, and in default of payment thereof, would further undergo 02 months S.I.

- The appellant was also convicted **under Section 404 PPC** and was sentenced to undergo **03 years' R.I. along with** a fine of Rs.10,000/-, and in default of payment thereof, would further undergo 02 months S.I. The benefit of section 382-B PPC was also extended in favour of the appellant. Both the sentences mentioned above awarded to the appellant would run concurrently.

- The appellant was further convicted **under Section 376 PPC** and sentenced to **Death**.
- The appellant was also convicted **under Section 302 PPC** and sentenced to **death as Tazir** with the direction to pay Rs.10,00,000/- as compensation to the legal heirs of the deceased under Section 544-A of Cr.P.C, and in case of default in payment thereof, he would further undergo 06 months S.I.

2. Feeling aggrieved by the judgment of the trial court, the appellant, Qaiser, has assailed his conviction and sentence by filing an instant jail appeal bearing **Crl. Appeal No.32449-J of 2022**. The trial court also referred **M.R. No.104 of 2022 (The State vs. Qaiser) to confirm the death sentence awarded to the appellant, Qaiser.** Both matters arising from the same judgment of the trial court are being disposed of through this consolidated judgment.

3. Briefly, the prosecution's story as alleged in the F.I.R. (Ex. PG/1) lodged on the application (Ex. PG) of Rashid Ali (PW-10)-the complainant is that on 11.03.2018 at about 05:00 p.m., the complainant's daughter, Mst. Zainab, aged about 6/7 years went to the house of Qaiser (the appellant) to return plier (پلاس) and did not return; the complainant himself started search of his daughter; that on suspicion, the complainant (PW-10) alongwith Bahadar Ali (given up PW) and Muhammad Shafique (PW-11), went to the house of accused at about 06/07:00 a.m. and started the search of the house; the dead body of complainant's daughter Zainab was recovered from an iron chest under the clothes, lying in Northern room of the house of the accused persons; the mouth of the complainant's daughter was tied with cloth and her neck, hands and feet were also tied with rubber; the accused Qaiser (the appellant) alongwith his co-accused Yasir, Iqbal, Azmat, Sehar and Shamim (co-accused since acquitted) committed the murder of the complainant's daughter and concealed the dead body.

4. After receiving the written complaint (Ex.PG) of the complainant (PW-10), a formal FIR (Ex.PG/1) was chalked out by Asif Khan, A.S.I (PW-3). After registration of the case, the investigation of this case was firstly entrusted to Muhammad Akram, S.I (PW-15) and secondly

Tariq Mehmood Inspector (PW-17) investigated the matter, who found the accused/appellant guilty, prepared a report under Section 173, Cr.P.C. while placing the name of the accused in column No.3 of the Challan and sent the same to the court of competent jurisdiction. The trial court formally charge-sheeted the appellant on 23.06.2018, to which he pleaded not guilty and claimed trial. In support of its version, the prosecution produced as many as seventeen (17) witnesses. The appellant was also examined in terms of Section 342 Cr.P.C., wherein he neither opted to appear as his own witness in terms of Section 340 (2) Cr.P.C. nor produced any defence evidence. In response to a particular question of why this case was against him and why the PWs deposed against him, the appellant made the following deposition:-

> **"I am absolutely innocent. I have no nexus with the commission of alleged offence. I have been falsely implicated in this case. There is only house of Darzi brother in mauza Suraj Chak which is of my father. On different occasions complainant party tried to snub us and take over our house and haveli in mauza Suraj Chak. The allegations put forth by the complainant party against me and my family members/co-accused persons are totally baseless. I have nothing to do with the commission of alleged offence. Actually the dead body of Zainab deceased was found from a deserted place and to fulfill his evil designs, the complainant of the case has falsely implicated me and my family members/co-accused persons in the instant case due to ulterior motives. After my false implication in this case, the complainant party has dispossessed my other family members of our house. Fake and managed recoveries have been planted upon me just to strengthen the false prosecution case. It is an unseen occurrence committed by some unknown accused person. The (deceased) Zainab was found missing then her dead body was found lying in the deserted place as unattended and thereafter I and my brother were arrested from our residence and implicated me in this case cooking-up false evidence. The DNA profile was also maneuvered by the local police as I was arrested prior to the arrival of DNA technicians/experts and police by joining hands**

> **with the complainant party with malafide intention did not show my arrest formally and managed evidence against me. The fake seminal material was prepared and then it was sent to the office of DNA in order to obtain the reports in favour of the prosecution. The PWs are related inter-se and inimical towards me and my co-accused persons due to party friction in the area and dirty village politics and for this reason, they have deposed falsely against me."**

5. Having reviewed the prosecution evidence on record, the learned Additional Sessions Judge has found the accused-appellant guilty of raping and murdering the deceased Zainab, 6/7 years old, and concealing her body in an iron chest. Based on these findings, the learned Additional Sessions Judge convicted and sentenced the accused-appellant as detailed in paragraph 01 of this judgment.

6. We have heard the arguments advanced by the learned counsel for the parties at length and perused the evidence.

7. According to the prosecution's case, on the fateful day, i.e., 11.03.2018, Zainab, aged approximately 6 or 7 years, went to the house of the appellant, Qaiser, at about 5:00 p.m. to return a plier. After that, she did not return. Rashid Ali (PW-10)-the complainant, along with Bahadur Ali (given up PW), and Muhammad Shafiq (PW-11), the complainant's brother, began searching on their own. At around 6 or 7 in the morning, when the suspicion passed, they returned to the house of the accused, Qaiser. They started searching his house, and the body of Zainab, daughter of Rashid Ali (PW-10), the complainant, was recovered from the north room of the accused's house in the iron chest (P-7) under the clothes. Her mouth was also tied with a cloth, and her neck, hands, and feet were tied with rubber. Rashid Ali (PW-10), the complainant, reported the incident through a written application (Ex.PG) to Asif Khan, ASI/DO (PW-3) at Police Station Lessar Kalan at 8:30 a.m., on which the police proceeding was incorporated and an FIR (Ex. PG/1) was chalked out. Rashid Ali (PW-10), the complainant, deposed during the cross-examination about his and his brother Muhammad Shafique's (PW-11) daily routine as under:-

> **"I and my brother Shafique run a butcher shop.-------- My shop is situated in village Bara Pind Jarpal which is a big village like town. There are shops of all type in said village. Village Bara Pind Jarpal is at a distance of 1.5 km from my village Suraj Chak. I have no dairy farm and purchase animals on daily basis. Generally we become free at about 12:00-noon after selling the meat in our shop. There is no chance of being late on any day from shop. On reaching at village Suraj Chak from shop, I usually be busy for fetching fodders for my buffalo. Mostly we purchase animals on Friday. On the day of business of shop, we do not go to purchase animals. My brother Shafique has the same routine like me.**
> **Accused Iqbal alongwith his family is residing at village Suraj Chak since his forefathers.----------The accused persons are Darzi by caste and there is only house of Darzi brother i.e. house of accused in village Suraj Chak.---------- The accused persons do not go anywhere for doing labour and they live in village Suraj Chak because they are tailor by profession. Three houses fall between my house and the house of the accused persons."**

Muhammad Shafique's (PW-11) in similar words deposed about his daily routine, and apart from the above, he also deposed during cross-examination that: -

> **"Generally, my routine is to go at shop at the time of Azan-e-Fajar and we become free at about 12:00/01:00 pm after selling the meat in our shop.---------- My house is situated in a separate street from the house of my brother Rashad and inter-se distance is 30/35-ft. ---------- The accused persons run the business of tailoring in the village and they do not go anywhere for doing labour.**
> **After coming from the butcher shop, I go to fetch fodder for my animals. We also have haveli in the village. At about 03:00 pm, I complete my work regarding fetching fodder and become available in the village. I also attend my family members. On 11-03-2018 at about 06:00 pm again said 05:00/06:00 pm, Zainab (deceased) went to the house of the accused persons to return (PLAS). At about 06:15 pm I came to know that Zainab**

> **(deceased) went missing as she went to the house of the accused persons to return (PLAS) and did not return. On coming to know about the missing of Zainab, firstly we went to the house of the accused persons. --------- Neither any one met us while going to the house of the accused persons nor we associated any person to join us to the house of the accused persons. ---------- On 11-03-2018, we also went to the houses of all villagers to search Zainab. We also made announcements in loud speaker on 11-03-2018 regarding the missing of Zainab (deceased). On 11-03-2018, we did not enter the house of the accused persons for search of Zainab (deceased). Volunteered we knocked the door of the house of the accused persons for searching Zainab (deceased), accused Mst. Azmat Bibi came out and told us that Zainab had already went back to her house after returning the (PLAS). It is incorrect to suggest that volunteered portion of my statement is false. We did not insist the accused persons to search their house on 11.03.2018. On 11-03-2018, we did not move any application in the police station for registration of FIR with the version that Zainab (deceased) went to the house of accused persons for returning (PLAS) and she did not come back.**
> **On 12-03-2018 we did not search any other house of the village to search Zainab (deceased). Volunteered that on 12-03-2018 we went to the house of the accused persons in search of Zainab on account of having again suspicion."**

In cross-examination, Muhammad Shafiq (PW-11) re-affirmed the prosecution version according to which on 12.03.2018, after suspicion passed, they went to the house of the accused Qaiser, etc., and started searching from where the body of Zainab was found in the iron chest (P-7). Both the prosecution witnesses, i.e., Rashid Ali (PW-10), the complainant, and Muhammad Shafiq (PW-11), also testified that they remained in their village after finishing their work at approximately 12:00 p.m. to 01:00 p.m. from Bara Pind Jarpal. This shows that Rashid Ali (PW-10), the complainant, and Muhammad Shafiq (PW-11) were present at about 05:00 p.m. on 11.03.2018 in their houses situated in the village Suraj Chak when minor Zainab went to the house of the appellant, Qaiser, to return a plier. It

is not the case that the plier (P-14) was not given to the complainant party. The defence, through their questions, admits that the complainant party took the plier. Rashid Ali (PW-10), the complainant, deposed during the cross-examination about his and his brother Muhammad Shafique's (PW-11) daily routine as under:-

> **"It is correct that in my application Ex-PG as well as in my statements recorded before the IO, I did not mention the name of person who brought the plier (پلاس) from the house of the accused and on which specific day. Volunteered stated that my daughter Zainab brought the plier (پلاس) from the house of the accused persons. It is incorrect to suggest that my volunteer portion is false. It is correct that nowhere in my application or statements earlier recorded, I ever mentioned that Zainab (deceased) told me that from whom among the accused persons, she brought plier (پلاس)."**

Here, it does not matter whether Zainab Bibi took the plier (P-14) or someone else took it from the accused's house. What matters is that the plier (P-14) was taken from the accused's house. There is nothing in there, i.e., Rashid Ali (PW-10), the complainant, and Muhammad Shafiq's (PW-11) cross-examinations to cast doubt on their evidence that around 5:00 p.m. on 11.03.2018, minor Zainab went to the house of the appellant, Qaiser, to return a plier (P-14). Defence failed to shake the credibility of Rashid Ali (PW-10), the complainant, and Muhammad Shafiq (PW-11) during cross-examination. The defence, through the testimony of Rashid Ali (PW-10), the complainant, and Muhammad Shafiq (PW-11), brought on the record while answering the question put by the learned defence counsel that the accused persons run a tailoring business in the village of Suraj Chak, and they do not go anywhere to do the labor. The defence has not put any suggestion to Rashid Ali (PW-10), the complainant, and Muhammad Shafiq (PW-11) that appellant Qaiser was not doing tailoring nor running a shop in his house on or before the fateful day.

8. After registration of the FIR (Ex. PG/1), Muhammad Akram, SI (PW-15), was entrusted with the investigation. Muhammad Akram SI (PW-15) deposed during examination-in-chief that on 12.03.2018, he reached the

place of the occurrence, the complainant, eyewitnesses, and other inhabitants of Mauza Suraj Chak were present. Muhammad Akram SI (PW-15), investigating officer, deposed that from the house of the accused persons, he recovered the dead body of the minor Zainab. The relevant portion of the examination-in-chief is as follows:

> **"On the pointation of complainant Rashad Ali and his witnesses namely Muhammad Shafique and Bahader Ali, dead body of Zainab (deceased) was recovered from an iron chest lying in the residential room of the house of accused persons present in the court. The mouth of the dead-body was tied with cloth and her hands and feet were tied with rubber and pieces of cloth. The dead body was taken out from the iron chest. I prepared the identification memo/recovery memo of the dead body Ex-PL and took the dead body into possession vide recovery memo Ex-PL, attested by Rashad Ali and Muhammad Shafique. The said iron chest and articles lying therein were also taken into possession by me vide recovery memo Ex-PM attested by Rashad Ali and Muhammad Shafique."**

The defence reaffirmed the fact of the recovery of the dead body of minor Zainab from the house of the accused persons. Muhammad Akram SI (PW-15), the investigating officer, brought these facts to the record, reaffirming his visit and recoveries from the house of the accused, while answering the questions put by the learned defence counsel. The relevant portion of the cross-examination is as follows:

> **"At my first visit at the place of occurrence, complainant Rashad Ali was present there. FIR was received to me at the place of occurrence, same was not received to me when I proceeded to the place of occurrence. ---------- I reached at the place of occurrence at about 08:30 am. The team of PFSA reached at the place of occurrence at about 09:30 am. ---------- Prior to the arrival of team of PFSA, iron chest alongwith dead body of the (deceased) and luggage lying in the iron chest were taken into possession by me vide recovery memos. No other article except iron chest, dead body of the (deceased) and luggage was taken into**

> **possession by me from rest of the area of the house during my search. -------- Other inhabitants of the village were also present at the place of occurrence at the time of my visit there. ---------- On the arrival of team of PFSA, I also continued my investigation at the spot. I conducted site inspection, prepared rough site plan and the articles which were recovered by the team of PFSA from the quilt cover were taken into possession by me vide recovery memos. After the arrival of team of PFSA, I did not take into possession any article or anything from the place of occurrence except the recovered articles by the team of PFSA were taken into possession by me. I remained present at the place of occurrence till 10:30 am."**

Admittedly, the tailor shop is within the four walls of the house, adjacent to the front wall of the house, and its door opens into the courtyard. If anyone enters in the house of the accused/appellant, he has to enter from the main gate, which is at the right side and on northern side there is a room, which is shown as tailor shop of appellant-Qaiser in the scaled site plan (Ex.PW), which is far from the residential rooms of the house and area falling between the residential rooms and tailor shop is an open place. When the matter spread in the locality about the disappearance of minor Zainab, the family tried to conceal the dead body. Dr. Ayesha Akram (PW-1) has deposed that on 12.03.2018, she conducted the postmortem examination on the dead body of Zainab Bibi, daughter of Muhammad Rashad (PW-10), the complainant, at 10:10 a.m. On External examination, and internal examination of the dead body, she observed as under: -

> **"EXTERNAL EXAMINATION**
>
> **A young girl of 6 to 7 years old lying straight on autopsy table with brown trouser and two legs were in one side of shalwar and was tied with rubber and this rubber was also tied with hands. Both wrist joints were tied with gray, red and yellow clothes and whole face was wrapped with green cloth. Only nose was outside. Neck and upper chest was wrapped with red coloured cloth. Body was wrapped in brown dopatta. Clothes alongwith knotted pieces (two) which were tied with rubber**

> **removed from mouth and there were ligature marks on both cheeks from sides of corner of mouth. There was dust in the hair of the deceased."**

Dr. Ayesha Akram (PW-1) opined that due to interference with respiration and vasovagal shock, which leads to death, the Hymen was ruptured, and rape was confirmed. The defence itself got clarified by asking a question to Dr. Ayesha Akram (PW-1) whether the nose of the deceased was covered with a rubber band or not. She (PW-1) deposed during cross-examination that:

> **"The rubber marks were from the middle of lips of the deceased and due to the tightness of the rubber, nose of the deceased was not covered/closed."**

Muhammad Akram S.I. (now Inspector) (PW-15), the investigating officer, deposed during examination-in-chief, that on 12.03.2018, he took snaps of the deceased Zainab from different angles using an official camera. On 13.03.2018, he (PW-11) handed over the official camera to Shakeel Ahmed 607/C (PW-2) and Ghulam Muzaffar 926/C (given up PW) to get the photographs developed from National Colour Lab& Digital Photo Studio situated at Darman Chowk, Shakargarh. Haider Ali (PW-6) deposed during examination-in-chief that: -

> **"I am running a photo studio shop in the name and style of National Colour Lab. & Digital studio at Darman Chowk, Shakargarh. On 13-03-2018, Shakeel Ahmad and Ghulam Muzaffar police constables came at my shop with a memory card. I developed four pictures P-1/1-4 of one Zainab deceased from said memory card and handed over the same alongwith memory card to said constables. On 17-03-2018, my statement was recorded by the IO in this regard."**

Shakeel Ahmed 607/C (PW-2) produced four photographs of the deceased P-1/1-4 during the evidence to Muhammad Akram S.I. (now Inspector) (PW-15), the investigating officer. Haider Ali (PW-6) and Shakeel Ahmed 607/C (PW-2) were not cross-examined; instead, the

opportunity was given. Muhammad Akram S.I. (now Inspector) (PW-15), the investigating officer, deposed that he took photographs of the deceased Zainab from different angles through an official camera, which were sent forward for development by Shakeel Ahmed 607/C (PW-2) and Ghulam Muzaffar 926/C (given up PW), Haider Ali (PW-6) admitted that Shakeel Ahmed 607/C (PW-2) and) and Ghulam Muzaffar 926/C (given up PW) handed over to him memory card and he developed four pictures P-1/1-4. The prosecution, through prosecution witnesses, i.e., Muhammad Akram S.I. (now Inspector) (PW-15), the investigating officer, Shakeel Ahmed 607/C (PW-2), and Haider Ali (PW-6), owner of the photo studio shop, completed the chain of events leading to the taking of photographs of the deceased and their subsequent development. Shakeel Ahmed 607/C (PW-2), deposed during examination-in-chief, that the memory card was given to him by Muhammad Akram S.I. (now Inspector) (PW-15), the investigating officer, so that he could get it developed at the National Lab. Haider Ali (PW-6) confirmed that the memory card was brought to him by Shakeel Ahmed 607/C (PW-2) and Ghulam Muzaffar 926/C (given up witness), from which he developed the pictures and then handed them over to Shakeel Ahmed 607/C (PW-2) and Ghulam Muzaffar 926/C (given up witness). In this regard, his statement was also recorded under section 161 CrPC. The defence could not break the chain presented by the prosecution, nor could it put a dent in it. These photographs, P-1/1-4, seized through a recovery memo (Ex. PF), show that the deceased's nose was neither covered with cloth nor rubber. The nose is clearly visible. Therefore, the child's breathing did not stop due to the tightness of the rubber, but rather her breathing was stopped, which caused her death. Dr. Ayesha Akram (PW-1) also deposed about the Forensic DNA and serology analysis report (Ex. PE) and deposed that:-

> **“In view of report of Punjab Forensic Science Agency Lahore No.0000432489, DNA profile of accused Qaiser matches with the stain secretion taken from quilt cover, swabs of rubber knot, ends of rubber knot, swabs from yellow coloured clothes tied and swabs taken from silver coloured strip and swabs from knot,**

> **therefore, victim Zainab was subjected to rape by accused Qaiser.**"

The appellant, in his statement under Section 342 Cr.P.C., pleaded that the DNA report was manipulated against him. The learned counsel for the appellant submitted in response to our query that the appellant did not challenge the Forensic DNA and serology analysis report (Ex. PE) at any stage of the trial or before judgment.

9. Dr. Nisar (PW-8), posted at the Crime Scene Unit, PFSA Gujranwala, stated that he, along with his team, arrived at the crime scene of the murder of Mst. Zainab at village Suraj Chak, Tehsil Zafarwal, District Narowal. He (PW-8) deposed that he collected Buccal swabs and swabs from the nails of the right and left hands of the deceased, Mst. Zainab made them into separate sealed parcels. He (PW-8) also deposed that he collected the chaddar, shirt, trousers of the deceased, and quilt cover, which he made into separate, sealed parcels and handed over seven sealed parcels to the investigating officer. The learned counsel for the appellant submitted that he (PW-8) admitted during cross-examination that he is not a witness to the recovery memo and did not sign it; the same is not reliable evidence to be used against the appellant. The only question put to him in cross-examination about this matter was that he had not signed Exhibit PU as an attester. The plea of the learned counsel for the appellant is misconceived, as on perusal of the recovery memo of seven sealed parcels (Ex.PU) reveals that Dr. Nisar (PW-8) handed over said seven sealed parcels to Muhammad Akram S.I. (now Inspector) (PW-15)-the investigating officer, in the presence of Muhammad Shafique (PW-11) and Bahader Ali (given up PW). Muhammad Shafique (PW-11) testified during examination-in-chief that: -

> **"At the place of occurrence, the team of PFSA, Gujranwala also came there who recovered the clothes one shirt off white colour, one brown colored trouser of my niece Zainab from the torn cover of quilt lying on the cot which were concealed in the said torn cover of quilt by the accused persons facing trial, the team of PFSA, Gujranwala also collected one gray coloured chaddar, one gray coloured cover of quilt, buccal swabs sample of (deceased) Zainab, one**

> **right hand nail swab of victim (Zainab), one left hand nail swab of victim (Zainab) during spot inspection, Dr. Nisar/The Incharge of team of PFSA prepared the seven separated sealed parcels regarding the said articles and handed over the same to Muhammad Akram SI/IO. Muhammad Akram SI/IO took the said seven sealed parcels regarding the said articles and handed over the same to Muhammad Akram SI/IO. Muhammad Akram SI/IO took the said seven sealed parcels into possession vide recovery memo Ex-PU, attested by me and Bahadar Ali which bears my signatures as Ex-PU/1."**

Muhammad Akram S.I. (now Inspector) (PW-15), the investigating officer, deposed during the examination-in-chief that: -

> **"The Team of PFSA, Gujranwala handed over to me seven sealed parcels alleged to contain one chaddar, shirt of the (deceased), trouser of the (deceased), one quilt cover, buccal swabs, right and left hands' nail swabs of (deceased) Zainab which I took into possession vide recover memo Ex-PU, attested by Muhammad Shafique and Bahader Ali."**

Neither of the above witnesses was cross-examined on the above part of their examination-in-chief. The defence failed to impeach the credibility of these witnesses, who proved the contents of the recovery memo regarding the seven sealed parcels (Ex.PU). Deoxyribonucleic acid, or DNA, is a molecule that encodes genetic information in all living organisms. DNA genotype can be obtained from any biological material, including bone, blood, semen, saliva, hair, and skin. For several years, DNA profiling has also had a tremendous impact on forensic investigations. Generally, when the DNA profile of a sample found at the scene of a crime matches the DNA profile of the suspect, it can generally be concluded that both samples have the same biological origin. DNA profile is valid and reliable, but the variance in a particular result depends on the quality control and quality procedure in the laboratory. Dr. Ayesha Akram (PW-1) deposed that the DNA profiles of the samples found at the scene of a crime matched the DNA profile of Qaiser, the appellant. Consequently, the DNA test report

could be safely accepted, which shows that the deceased Zainab was subjected to rape, and an offence under Section 376 PPC has been clearly made out. Section 376 is mainly confined to Punishment for rape, which intends to punish a man when he indulges in rape with a woman. Rape is defined in Section 375 of PPC, which clearly states, "a man is said to commit rape who has sexual intercourse with a woman without her consent. The DNA test also proved that:

(i) Stain sections taken from the quilt cover and dark brown coloured "pajama" (item No. 15.7, 15.12, 15.13, 15.14, 15.15, 15.20, 15.21, 15.22, and 15.23) matched with the buccal swab of Muhammad Qaiser.

(ii) Swabs taken from the cloth piece at the end of the rubber (item No. 6.4) and a swab taken from the elastic having a knot (item No. 19.1) removed from the clothes of Zainab matched with the buccal swabs of Zainab (item No.9).

(iii) DNA profile obtained from one left-hand nail swab of Zainab (item No. 11) and a Swab taken from the cloth piece (item No. 19.4) taken from the place of occurrence matched with the buccal swabs of Zainab (item No.9).

(iv) DNA profile obtained from the rubber knot (item No. 6.2) matched with the buccal swabs of Zainab (item No.9) and Muhammad Qaiser (item No. S1).

(v) DNA profile obtained from the swabs taken from the ends of the rubber (item No. 6.3) matched with the buccal swabs of Zainab (item No.9) and Muhammad Qaiser (item No. S1).

(vi) DNA profile obtained from the swabs taken from the ends of the black piece of rubber (item No. 18.2) matched with the buccal swabs of Zainab (item No.9) and Muhammad Qaiser (item No. S1).

(vii) DNA profile obtained from the swabs taken from the knots (taken from different cloth pieces tied together, item No. 20) (item No. 20.1) matched with the buccal swabs of Zainab (item No.9) and Muhammad Qaiser (item No. S1).

(viii) DNA profile obtained from the swabs taken from the silver-coloured strip (taken from

different cloth pieces tied together, item No. 20) (item No. 20.2) matched with the buccal swabs of Zainab (item No.9) and Muhammad Qaiser (item No. S1).

(ix) DNA profile obtained from the swabs taken from the yellow-coloured cloth piece (taken from different cloth pieces tied together, item No. 20) (item No. 20.3), the buccal swabs of Zainab (item matched with No.9) and Muhammad Qaiser (item No. S1).

The Forensic DNA and serology analysis report (Ex. PE) reveals that a Short Tandem Repeats (STR) test was conducted. The plea of the accused Qaiser is that the prosecution with the active connivance of local police conducted fabricated proceedings of collection of iron peti (P-7), two quilts (P-8/1-2), one gadda (P-9), one colored chaddar (P-10), one male suit (P-11) in his absence from his (Qaiser' house) house. However, during cross-examination, the defence reaffirmed that the proceedings of recovery of P-7 to P-11 were effected from his house. The plea of the appellant, Qaiser, that the prosecution, with the active connivance of the local police, conducted all the proceedings against him and his co-accused, is not supported by any material evidence. Although the appellant has taken a specific defence that, in his absence, as well as that of his family members, all the proceedings were taken, he has not denied that recoveries were not effected from his house. A specific question was put to the appellant-Qaiser under section 342 of Cr.P.C. that the daughter of the complainant (PW-10) namely Zainab aged about 6/7 years (since deceased) went to his house for giving plier and she did not return and in the morning at 6/7:00 a.m., when on account of suspicion, the prosecution witnesses started search of his house, from the northern room of his house, dead body of Zainab was recovered, which was lying beneath the clothes inside the iron peti (P-7), her mouth was tied with cloth and her neck/throat, hands and feet were tied with rubber and clothes. While replying to said question, the appellant has deposed as under:-

> **"It is incorrect. The prosecution has cooked up a false and concocted story against me and my co-accused. I have no nexus with the commission of offence as alleged by the**

> **prosecution against me and my co-accused persons. The complainant with active connivance of the local police conducted all the proceedings against me and my co-accused persons."**

The appellant, Qaiser, during his statement made under section 342 of Cr.P.C., stated that the recovery of the dead body was effected from the deserted place. However, this plea has not been put to the prosecution witnesses, i.e., Muhammad Akram, S.I. (PW-15), the investigating officer, and Tariq Mehmood, Inspector (PW-17), which is an afterthought. Learned counsel for the appellant submitted that the appellant was declared innocent, and he was not arrested by Muhammad Akram S.I. (PW-15)-the investigating officer. It is an admitted fact that when the entire proceedings took place, the appellant was not present. After the recoveries, Muhammad Akram S.I. (PW-15), the investigating officer, initiated a search for the arrest of the accused persons named in the FIR in Mauza Suraj Chak and surrounding villages, but all of them fled. Later that same day, based on spy information, the accused persons, along with Qaiser, were apprehended from Bus Stop Ghamrola. The investigating officer (PW-15) interrogated them and took them to the police station in Lessar Kalan. After that, he (PW-15), along with Qaiser (the appellant) and other accused and case property, proceeded to the office of PFSA, Lahore, where a DNA test of the accused persons was done. After that, they came back to the police station, where he (PW-15) kept the arrest of the accused persons, i.e., Qaiser (the appellant) and Yasir, in abeyance and released them on personal surety. In this regard, Muhammad Akram SI (PW-15)-investigating officer deposed during cross-examination that:-

> **"The accused persons namely Yasir and Qaiser were apprehended on 12.03.2018 and they were interrogated, on the same day they were taken to the office of PFSA for the purpose of conducting their DNA test. Both the said accused persons were nominated in FIR. It is correct that accused persons were not arrested in this case till my return from the office of PFSA. Till that time, no prima-facie evidence was available against the accused persons**

> **namely Yasir and Qaiser for their arrest, so I kept their arrest in abeyance."**

Tariq Mehmood, Inspector (PW-17)-the investigating officer deposed during his examination-in-chief that:-

> **"Thereafter, I searched for the accused persons but of no avail. On 27-03-2018, 01-04-2018 and 06-04-2018, I tried for the arrest of the accused persons but they had deliberated concealed themselves. On 07-04-2018, I was present in police station Saddar Narowal where DNA test report Ex-PE was received to me through the dock of DPO Office, Narowal which was annexed with the record. ---------- I alongwith above said police officials was present at mauza Ghamrola where I received spy information that accused person namely Qaiser Iqbal was standing at bus stop mauza Loharan, upon this information I alongwith above said police officials proceeded to bus stop mauza Loharan where accused Qaiser Iqbal was present who was apprehended by me."**

The law is settled on the point that, in case the accused took a specific plea, then he should prove the same by producing legal evidence, but the appellant has not produced any material evidence as to why they fled away from the house on the day and time when a search was made in their house and recoveries were effected. The defence failed to extort anything from the mouth of the prosecution witnesses about any specific reason for nominating or the reason why Rashid Ali (PW-10)-the complainant and other prosecution witnesses deposed about the recoveries, including the dead body of Zainab from the appellant's house. Although the dead body was recovered from the residential room of the appellant-Qaiser but the prosecution witnesses i.e. Rashid Ali (PW-10)-the complainant and Muhammad Shafique (PW-11) have not specifically named Qaiser (the appellant) for the offence, rather they only deposed that minor Zainab, aged about 6/7 years went to return the plier to Qaiser (the appellant) on 11.03.2018 at 05:0 p.m and thereafter she did not return, after which search was made and recoveries were effected. There were the recoveries, i.e., iron peti (P-7), two quilts (P-8/1-2), one gadda (P-9), one colored chaddar (P-10),

one male suit (P-11), effected from the appellant's house, DNA of which was matched with the DNA profile of the appellant-Qaiser. What was happened on the day i.e. 11.03.2018, the prosecution witnesses mentioned in the written application (Ex.PG), FIR (Ex.PG/1) and deposed in court statement and during the thrashing cross-examination, not a single word was put to the prosecution witnesses that they had not made any search on 11.03.2018 and 12.03.2018 at the house of the accused persons, nor they fled away from the place of occurrence. Rather, the appellant, Qaiser, during his statement under section 342 of Cr.P.C., has stated that the recoveries were effected in his absence. The appellant has not stated that the recoveries were not made from his house; rather, he took the plea that they were made from somewhere else and used against him. No suggestion was made that the recoveries mentioned above were not made from the accused person's house. Instead, the defence reaffirmed that the recoveries were secured from the accused person's house. Prosecution has clearly established that, after subjecting the minor girl to rape, death was caused by interference with respiration. The record shows that at the time of recording the statement under Section 342 Cr.P.C., the accused Qaiser took a new line of defence that the dead body of Zainab was found lying in a deserted place unattended. The "deserted place" was not mentioned by the accused, Qaiser. This plea has not been put to the prosecution witnesses.

10. The prosecution has also produced witnesses of last seen i.e. Luqman Ali (PW-12) and Muhammad Rafique (PW-13), who deposed that on 11.03.2018 at about 05:00 p.m, they were standing in front of haveli of Qaiser accused, when Zainab daughter of Rashid Ali (PW-10)-the complainant was holding a plier in her hand entered into the house of Qaiser (the appellant). After that, they went to their houses. After some time, announcements were made on the mosque's loudspeaker regarding the disappearance of Zainab. On 12-03-2018 at about 06/07:00 am dead body of Zainab was recovered from the house of appellant-Qaiser. The witnesses mentioned above have not specifically stated that when they informed the complainant about the last time, they saw the deceased, Zainab, they went to the house of the accused Qaiser. Even the complainant has not mentioned in

his application (Ex.PG) that the witnesses, as mentioned earlier, informed him about the last seen. The prosecution has also produced the witness of an extrajudicial confession, i.e., Muhammad Hanif (PW-14), who stated that on 16.03.2018, the accused persons made a confession before him. However, he has not stated a single word when he informed the complainant (PW-10) about the extrajudicial confession made by the accused persons, nor was the complainant's supplementary statement recorded. If we do not consider the evidence of last seen and extra judicial confession, even then, going of Zainab in the house of accused for return of plier, reaffirmation by the defence regarding recovery of dead body from the house of accused, matching of DNA profile of appellant-Qaisar with the recoveries, arrest of the appellant after receiving DNA report, all these links complete the chain of circumstantial evidence, which connects the appellant with the commission of crime.

11. Considering the cumulative effect of all the proven circumstances, we hold that the chain of circumstantial evidence is complete, which unerringly points to the fact that none other than the appellant committed the crime. The prosecution evidence and the forensic DNA and serology analysis report (Ex. PE) indicate that the accused engaged in such a barbaric act and ultimately murdered the minor girl after raping her and then concealed her body in the iron chest (P-7) within Iqbal's residential room (since acquitted), who is the father of the accused Qaiser. This room was located at the back corner of the house, had no windows except a door, and was inside the home. The offense creates fear in the general public. The crime is committed so brutally that it shocks not only the judicial conscience but even the conscience of society. At the time of the crime, the age of the deceased was six/seven years. Thus, we can say that she was raped and murdered at an age when girls often play with their dolls and when they are unaware of the materialistic world. As per the record, at the time of commission of the offence, the age of the accused-appellant Qaiser was approximately 32 years. Thus, he was mature enough to understand the consequences of committing such a ghastly crime. In the circumstances, we are of the view that a strong message in the form of

deterrent punishment ought to go to criminals of like mind that in such cases the Courts would award only the death penalty, because there is no mercy for merciless. We believe that the case under Sections 302, 376(3), and 201 PPC has been clearly established. Therefore, convictions recorded and sentences awarded to the appellant are maintained.

12. For the preceding reasons, Crl. Appeal No. 32449-J of 2022, filed by Qaiser, the appellant, is ***dismissed***. Murder Reference No.104/2022 sent by the trial court is answered in the affirmative, and the death sentence awarded to the appellant is confirmed.

(Abher Gul Khan)
Judge

(Aalia Neelum)
Chief Justice

Approved for reporting

Judge

Chief Justice

This judgment has been dictated, pronounced on 24.09.2025, and signed after its completion on 20.10.2025.

*Ikram**